Therefore, the parliamentary control over the Executive in financial matters operates in two stages:

(a) budgetary control, that is, control before the appropriation of grants through the enactment of the budget; and

(b) post-budgetary control, that is, control after the appropriation of grants through the three financial committees.

The budget is based on the principle of annuity, that is, the Parliament grants money to the government for one financial year. If the granted money is not spent by the end of the financial year, then the balance expires and returns to the Consolidated Fund of India. This practice is known as the 'rule of lapse'. It facilitates effective financial control by the Parliament as no reserve funds can be built without its authorisation. However, the observance of this rule leads to heavy rush of expenditure towards the close of the financial year. This is popularly called as 'March Rush'.

4. Constituent Powers and Functions

The Parliament is vested with the powers to amend the Constitution by way of addition, variation or repeal of any provision. The major part of the Constitution can be amended by the Parliament with special majority, that is, a majority of the total membership of each House and a majority of not less than two-thirds of the members present and voting in each House. Some other provisions of the Constitution can be amended by the Parliament with simple majority, that is, a majority of the members present and voting in each House of Parliament. Only a few provisions of the Constitution can be amended by the Parliament (by special majority) and with the consent of at least half of the State Legislatures (by simple majority). However, the power to initiate the process of the amendment of the Constitution (in all the three cases) lies exclusively in the hands of the Parliament and not the state legislature. There is only one exception, that is, the state legislature can pass a resolution requesting the Parliament for the creation or abolition of the legislative council in the state. Based on the resolution, the Parliament makes an act for amending the Constitution to that effect. To sum up, the Parliament can amend the Constitution in three ways:

(a) By simple majority;

(b) By special majority; and

(c) By special majority but with the consent of half of all the state legislatures.

The constituent power of the Parliament is not unlimited; it is subject to the 'basic structure' of the Constitution. In others words, the Parliament can amend any provision of the Constitution except the 'basic features' of the Constitution. This was ruled by the Supreme Court in the *Kesavananda Bharati* case[24] (1973).

5. Judicial Powers and Functions

The judicial powers and functions of the Parliament include the following:

(a) It can impeach the President for the violation of the Constitution.

(b) It can remove the Vice-President from his/her office.